



Maritime &
Coastguard
Agency

Guidance

MGN 699 (M): Guidance on the Merchant Shipping (Carriage of Cargoes) Regulations 2024

Updated 28 May 2024

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Summary

This Marine Guidance Note (MGN) draws attention to the Merchant Shipping (Carriage of Cargoes) Regulations 2024 (“the 2024 Regulations”) which revoke and replace the Merchant Shipping (Carriage of Cargoes) Regulations 1999.

The 2024 Regulations implement Chapter VI of the Annex to the International Convention for the Safety of Life at Sea, 1974 (“SOLAS”). The United Kingdom is a signatory to SOLAS which is the main international treaty concerning the safety of merchant ships engaged on international voyages. SOLAS Chapter VI sets out requirements for the carriage of cargoes (except liquids and gases in bulk). Various International Maritime Organization (“IMO”) codes, certifying documents and auditable processes flow out of this chapter including:

- The International Maritime Solid Bulk Cargoes (IMSBC) Code
- Cargo Securing Manuals^[footnote 1]
- Verification of the gross mass of packed containers (VGM)^[footnote 2]
- Precautions for the use of pesticides in ships^[footnote 3]

1. Introduction

1.1 SOLAS is an important international treaty concerning the safety of merchant ships engaged on international voyages. The main objective of SOLAS is to specify minimum standards for the construction, equipment and operation of ships, compatible with their safety.

1.2 The 2024 Regulations largely retain the regulatory provisions for implementing SOLAS Chapter VI requirements for the carriage of cargoes which have been in force since 1999. However, there are some differences between the Merchant Shipping (Carriage of Cargoes)

Regulations 1999 and the 2024 Regulations which have replaced them. These differences are:

- The format of the 2024 Regulations is more succinct than that in their predecessor. Rather than expressly replicating the requirements in SOLAS and relevant mandatory codes, the 2024 Regulations point directly to the relevant requirements of SOLAS Chapter VI and the associated mandatory codes.
- The 2024 Regulations include ambulatory reference (AR) provision which is intended to ensure that amendments to international safety standards can be efficiently implemented in the UK and to ensure that a gap does not develop between UK regulations and accepted international standards.
- The 2024 Regulations make provision for the full implementation of the IMSBC Code in the UK which, until this point, has been in part implemented through the Merchant Shipping (Dangerous Goods and Marine Pollutants) Regulations 1997 and in part through non-mandatory Marine Guidance Notes.
- The 2024 Regulations implement the prohibition on the at-sea blending of bulk liquid cargoes as set out in Regulation 5-2 of SOLAS Chapter VI.
- The requirement in Regulation 5-1 of SOLAS Chapter VI for the provision of a material safety data sheet for oil or oil fuel as defined in Annex I of the International Convention for the Prevention of Pollution from Ships, 1973 (“MARPOL”) was previously implemented in the UK through the Merchant Shipping (Dangerous Goods and Marine Pollutants) Regulations 1997 and this provision can now be found in the Merchant Shipping (Carriage of Cargoes) Regulations 2024 although the provision itself remains unchanged.

2. The Regulations

2.1 The Merchant Shipping (Carriage of Cargoes) Regulations 2024 entered into force on 11 June 2024, revoking and replacing the Merchant Shipping (Carriage of Cargoes) Regulations 1999.

2.2 The 2024 Regulations incorporate and implement all recent amendments to SOLAS Chapter VI and include provisions to ensure that UK keeps in step with international maritime safety standards.

3. Application

3.1 The 2024 Regulations apply to the carriage of cargoes in general by seagoing UK ships wherever they may be, and by seagoing non-UK ships whilst in UK waters. Seagoing ships are ones which navigate beyond the limits of category A, B, C or D waters^[footnote 4].

3.2 The 2024 Regulations mirror the provisions of SOLAS Chapter VI and do not include aspects covered by other SOLAS chapters. As the specialist requirements for ships carrying bulk liquid and gas cargoes are detailed in SOLAS Chapter VII, the 2024 Regulations do not specifically include requirements for the carriage of bulk liquids and gases save for the specialist provisions in SOLAS Chapter VI on material safety data sheets and blending of bulk liquid cargoes, details of which are included in Annex A (<https://www.gov.uk/government/publications/mgn-699-m-guidance-on-the-merchant-shipping-carriage-of-cargoes-regulations-2024/annex-a-requirements-from-solas-chapter-vi>) to this MGN. Since SOLAS Chapter VII covers the special provisions for dangerous goods thereby limiting the application of Chapter VI to aspects not covered in Chapter VII, application of the 2024 Regulations to cargoes which are dangerous goods is similarly limited to aspects not covered in the Merchant Shipping (Dangerous Goods and Harmful Substances) (Amendment) Regulations 2024.

3.3 Since the SOLAS Convention concerns the safety of merchant ships, the 2024 Regulations also reflect the general application provisions of SOLAS in that there are certain ship types to which the 2024 Regulations do not apply. These ship types include warships, pleasure vessels and fishing vessels, though this should reflect the actual use and employment of the vessel and not simply its original designation.

3.4 In keeping with the application provisions of SOLAS Chapter VI and the customary legal mechanisms within UK Merchant Shipping legislation, the 2024 Regulations make provision for exemptions and equivalences.

Further details can be found in Annex A

(<https://www.gov.uk/government/publications/mgn-699-m-guidance-on-the-merchant-shipping-carriage-of-cargoes-regulations-2024/annex-a-requirements-from-solas-chapter-vi>) of this MGN, including how to make an application to the Maritime and Coastguard Agency (“MCA”) for an exemption or equivalence. A general exemption for certain cargo ships is also included in Annex D

(https://assets.publishing.service.gov.uk/media/664f23b0b7249a4c6e9d3a3e/MGN_699_Annex_D.pdf) to this MGN.

3.5 Where SOLAS Chapter VI makes reference to cargoes which, owing to their particular hazards to ships or persons on board, may require special precautions, it must be borne in mind that whilst the characteristics of some cargoes, such as flammability, toxicity or propensity to shift in bulk, present clear hazards, even otherwise benign cargoes requiring no special considerations prior to loading may pose a hazard to the ship or personnel once on board. In setting out requirements for the carriage of cargoes, SOLAS Chapter VI makes clear that all aspects of the proper handling of any cargo, such as the provision of cargo information, the provision of the verified gross mass of cargo transport units, proper stowage, trimming and securing, the provision and use of a Cargo Securing Manual etc. are important components in the safe carriage of any cargo and, where any aspect of the proper handling of that cargo falls down, a potential hazard to the ship or personnel may arise. As such, whereas SOLAS is principally a maritime convention applied to vessels and their operators, SOLAS Chapter VI also makes provision in relation to other parties who are ashore and beyond the ship's rail, such as shippers and terminal representatives. The 2024 Regulations similarly make specific provision for these parties in relation to the carriage of cargoes.

3.6 Requirements from SOLAS Chapter VI and advice on compliance are set out in Annex A (<https://www.gov.uk/government/publications/mgn-699-m-guidance-on-the-merchant-shipping-carriage-of-cargoes-regulations-2024/annex-a-requirements-from-solas-chapter-vi>) to this MGN. Additional information on the UK's implementation of the Code of Practice for Safe Loading and Unloading of Bulk Carriers (BLU Code) is included in Annex B (<https://www.gov.uk/government/publications/mgn-699-m-guidance-on-the-merchant-shipping-carriage-of-cargoes-regulations-2024/annex-b-loading-unloading-and-stowage-of-solid-bulk-cargoes-and-the-blu-code>) to this MGN. Further guidance on the structure and layout of a cargo securing manual is included in Annex C (<https://www.gov.uk/government/publications/mgn-699-m-guidance-on-the-merchant-shipping-carriage-of-cargoes-regulations-2024/annex-c-stowage-and-securing-cargo-securing-manual>) to this MGN. A general exemption for cargo ships of less than 500gt is set out in Annex D (https://assets.publishing.service.gov.uk/media/664f23b0b7249a4c6e9d3a3e/MGN_699_Annex_D.pdf) to this MGN.

More information

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Please note that all addresses and telephone numbers are correct at time of publishing.

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1. Previously the subject of MGN 146, now included within this Guidance Note
 2. Detailed VGM guidance including company registration and approvals are set out in MGN 534
 3. Mandatory requirements can be found in MSN 1917. Consolidated guidance, including the fumigation of cargoes and cargo units, can be found in MGN 700
 4. See [Merchant Shipping Notice 1837 \(M\) Amendment 3](https://www.gov.uk/government/publications/msn-1837-m-amendment-3-categorisation-of-waters) (<https://www.gov.uk/government/publications/msn-1837-m-amendment-3-categorisation-of-waters>) for further details on categorized waters).



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